

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2012-5931

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF KAREN
ANDREWS, LICENSE NO. LPC 4016,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional
Counselor Examiners (the "Board") and Karen Andrews ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a Professional Counselor ("LPC") in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of Case Number 2012-5931. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or around September 7, 2012, Respondent documented progress notes on multiple clients for a group therapy session that never occurred.
 - b. Respondent was terminated from her counseling agency as a result of the false documentation.
5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated §12-43-222(1)(g) and (u), C.R.S.
6. By virtue of the admissions in paragraph 4, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

PROBATION

7. Respondent's license to practice professional counseling in the State of Colorado is hereby placed on probation for two (2) years commencing from the effective date of this Order or the date Respondent's therapy evaluator is approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order. If at any time Respondent is not in compliance with the terms and restrictions of probation, including a therapist, if required, in place, Respondent shall cease the practice of professional counseling.

8. The period of probation is tolled during any time that Respondent is not practicing in the State of Colorado, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

9. Respondent shall report to the Board if she discontinues the practice of professional counseling or if Respondent is not practicing professional counseling at the time this Order is executed. Respondent shall notify the Board upon resuming the practice of professional counseling.

10. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a LPC in the State of Colorado, is undergoing therapy if required, and is in full compliance with all terms of this Order.

11. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that she has satisfied all terms and conditions of probation.

MENTAL STATUS EVALUATION

12. Respondent shall undergo a mental status evaluation by a Board-approved mental health provider ("therapy evaluator"). Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three proposed therapy evaluators for the Board's approval. Respondent shall include a Board-approved therapy evaluator application from each potential evaluator with attached curriculum vita or resume. The proposed therapy evaluators shall meet the following criteria:

- a. The therapy evaluator shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;
- b. It is recommended that the therapy evaluator have a minimum of five years experience and not have been subject to professional discipline; and
- c. The therapy evaluator shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

13. The evaluation shall be conducted so as to enable the therapy evaluator to make findings and recommendations as to whether Respondent has any conditions that may endanger the health or safety of persons under her care, whether Respondent can practice with skill and safety for her clients, and whether Respondent should undergo psychotherapy as a term of probation. As part of the evaluation, the therapy evaluator shall be provided with pertinent information regarding Respondent. Respondent agrees to provide the therapy evaluator with any medical or psychological information requested by the therapy evaluator as part of the evaluation, including information and reports from therapists.

14. The therapy evaluator shall provide a written report to the Board setting forth the nature of the evaluation conducted, with findings and recommendations as to whether Respondent has any conditions that may endanger the health or safety of persons under her care, whether Respondent can practice with skill and safety for her clients, and a recommendation as to whether Respondent needs psychotherapy. If approved by the Board, Respondent may provide a complete report from her current treating therapist detailing the treatment provided and other findings and recommendations of the therapist instead of an evaluation.

15. The Board will review the evaluation and determine whether Respondent shall undergo psychotherapy as a term of probation. If the Board orders psychotherapy as a term of probation, Respondent shall undergo psychotherapy with a mental health provider approved by the Board as a term of probation, as explained below.

PSYCHOTHERAPY

16. If psychotherapy is required as a term of probation, Respondent must have a Board-approved therapist in place. During the term of probation, Respondent shall undergo psychotherapy with a mental health provider approved by the Board ("therapist"). If the Board has not already approved Respondent's therapist, Respondent must follow the same steps as outlined in paragraph 12 above in order to secure a therapist.

17. Respondent must have a therapist approved by the Board within two months after this Order is fully executed. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of her practice until a therapist is approved.

18. After the Board's written approval of the therapist, Respondent and the therapist shall enter into a written contract for therapy. The therapist shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the therapist has received a copy of this Order, the complaint and responsive documents, all investigative reports, and all other relevant reports; read these documents; and understands and agrees to perform the duties and responsibilities s/he is undertaking as Respondent's therapist.

19. The therapist shall conduct therapy and report to the Board in writing as follows:

- a. The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less

frequently than once every month, unless otherwise approved by the Board based on recommendations of the therapist; and

b. The therapist shall report to the Board in writing on both the progress of the therapy, and whether Respondent is able to practice with reasonable skill and safety for her clients, and must send a copy of each report to the Respondent. The therapist must submit her/his first report by the fifth day of the month following the first full month of therapy monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 report. After the submission of the first 12 reports, unless otherwise ordered by the Board, the therapist shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until therapy monitoring is completed; and

c. In the first report, the therapist shall state that s/he has received and read a copy of this Order, all Board files, and the evaluator's report, and must state that s/he understands the duties and responsibilities s/he is undertaking as Respondent's therapist.

20. If, at any time, the therapist is of the opinion that Respondent is practicing professional counseling in a manner that does not meet the generally accepted standards of practice or has a condition that renders her unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under her care, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within 48 hours of forming her/his opinion. The therapist shall send a copy of such report to the Respondent when s/he sends the report to the Board. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

21. Either Respondent or her therapist may terminate the therapeutic relationship upon written notice to the other and the Board no less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event Respondent does not have another Board-approved therapist prior to the termination, Respondent shall cease the practice of professional counseling until she has another Board-approved therapist in place. The subsequent therapist shall conduct therapy with Respondent and report to the Board in accordance with this Order.

22. If psychotherapy is required as a term of probation, Respondent cannot practice psychotherapy during the period of probation, and must cease the practice of psychotherapy, if she is not undergoing psychotherapy in accordance with this Order, unless otherwise provided by the Board based on the recommendations of the therapist.

CONTINUING EDUCATION

23. During the period of probation, Respondent must successfully complete twenty (20) hours each year of Board-approved professional continuing education courses in the area of record keeping. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Board. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory professional Continuing Professional

Development requirements for an active Colorado license or to meet any other licensure requirements.

TERMS AND CONDITIONS

24. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

25. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

26. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

27. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

28. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

29. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

30. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

31. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

32. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

33. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is

deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

34. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

.....35. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT



KAREN ANDREWS
LPC NO. 4016

AGREED TO AND ORDERED BY:

BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS



JACQUILINE ARCELIN
Acting Program Director

Effective this 25th day of February 2013.